



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

November 11, 2019

Ms. Sharon Clarco
5710 Dacula Shores Rd.
Conesus, NY 14435

Dear Sharon,

The company and this department are moving in a different direction and the position you currently hold is being eliminated. I regret to inform you that your employment with Johnstone Supply of CNY (The KL Group, Inc.) will be terminated effective Monday, November 11, 2019.

Your final paycheck for hours worked will be paid on the regularly scheduled payday following your last day of work. Note that we will be deducting \$607.00 from your last paycheck to cover the incremental cost of the donated water heater that was installed in your home due to your house fire last year, but which was subsequently removed and returned in damaged and unsaleable condition.

We very much want to recognize the many years of service you have provided Johnstone, so I am prepared to offer you a severance package in the amount of \$4,000.00 in exchange for signing the attached release of claims and returning the signed release to me no later than Friday, November 15, 2019. Should you choose not to sign the attached release of claims, you will need to inform me in writing of this decision.

Additionally, you have 90 days from your termination date to continue submitting any expenses through your HRA that were incurred on or before November 11, 2019.

Finally, you are eligible for unemployment insurance benefits and the attached form shows you how to apply and the information needed to complete your online claim.

Please contact me at (585) 441-0338 or karen.craft@johnstonehvac-ny.com should you have any questions.

We wish you the best in your future endeavors.

Sincerely,

Karen Craft

Controller, Johnstone Supply of CNY (The KL Group, Inc.)

Attachment: NYS Unemployment Insurance Form, Release of Claims

RELEASE OF CLAIMS

This Release is made and entered into this 11th day of November 2019, between Sharon Clarcq ("Employee") and Johnstone Supply of CNY (The KL Group, Inc.) and any of its affiliates and their officers, directors, agents, employees, or assignees ("Employer").

The purpose of this Release is to set forth the terms and conditions under which Employee and Employer shall terminate their employment relationship. The parties agree as follows:

1. Termination. Subject to the terms and conditions set forth herein and in the Release of Claims, Employee and Employer agree that, effective November 11, 2019, Employee has ended employment with Employer.
2. Employer's Payments. The parties agree that Employee shall receive the following from Employer in consideration of the promises made herein and Employee's compliance with the terms of this Release.

2.1. Employer shall pay to Employee severance pay in the amount of \$4,000.00.

3. Records, Documents and Property. Employee represents and warrants that Employee has not taken, or has returned, any of Employer's property, including but not limited to, computers and computer data, documents and tangible items pertaining to Employer, as well as credit cards, keys, access codes and/or other records, documents or property.
4. Confidentiality. Employee agrees to forever treat and maintain as confidential all information relating to Employer and its business, clients, vendors, suppliers, customers, and prospective clients and customers, including but not limited to Employer's customer lists, project files, job processes, financial information, personnel information, computer information, techniques, designs and methods, business strategies, operations, pricing information, sales and marketing plans, and all other information which is not generally known outside the Employer.
5. Non-Disparagement. Employee agrees to refrain from making any negative or disparaging remarks concerning Employer, its owners, directors, officers, employees, customers, vendors, or its products or services. Employer agrees to refrain from making any negative or disparaging remarks concerning Employee.

IN WITNESS WHEREOF, the parties hereto have executed this Release agreement as of the day and year first above written.

EMPLOYEE

Sharon Clarcq

Dated: November 11, 2019

EMPLOYER

By: _____


Karen Craft, Controller

Johnstone Supply of CNY (The KL Group, Inc.)

Dated: November 11, 2019



**Department
of Labor**

Unemployment Insurance Division

Record of Employment

Employer: Complete the following and give this form to every employee who quits, is laid off, or is discharged:

Date given to employee:

11/11/2019

NYS Employer Registration No.:

67-21307

Federal Employer Identification No.:

16-1391624

Employer Name: THE KL GROUP, INC (Johnstone Supply of CNY)

Payroll Records are kept AT:

Street: 77 HALSTEAD STREET

Street: SUITE 3

City: ROCHESTER

State: NY

Zip: 14610

Optional if needed by employer to locate employee record:

Payroll or Clock No.: Location of employment or code:

Employee: Keep this certificate. Have it with you if you apply for Unemployment Insurance (UI) benefits. This certificate shows that your job was insured. It does not necessarily mean you qualify for benefits. The UI Claims Center will make that determination if you apply. Please complete the following:

Your Name: SHARON CLARCQ

Social Security No.:

--	--	--	--	--	--	--	--	--	--

This may not be used as an identification card.

IA 12.3 (01/18)

How to Apply For New York State Unemployment Insurance

Unemployment Insurance is temporary income for eligible workers who are out of work through no fault of their own. It provides them a weekly benefit while they look for work. If you become unemployed and want to apply for Unemployment Insurance benefits, apply online at www.labor.ny.gov for a quick and convenient way to file your claim or call the Telephone Claim Center toll free at (888) 209-8124.

Have the following information available when you apply:

1. Your Social Security Number.
2. Your NYS Driver License or Motor Vehicle ID card (if you have either one).
3. Your complete mailing address and zip code.
4. A phone number, including area code, where we can reach you from 8:00 am – 5:00 pm, Monday – Friday.
5. Your alien registration card (if you are not a US citizen and have a card).
6. Employer information (even employers in other states) for the last 18 months which includes:
 - Employer names, addresses, and phone numbers.
 - NYS Employer Registration Number or Federal Employer Identification Number (FEIN). The FEIN is on your W-2 form(s).
 - Your total gross earnings (before any deductions) for each employer. You may be asked for pay stubs, W-2 forms, or other payment records.
7. Your copies of "Notice to Federal Employee about Unemployment Insurance" (Form SF8) and "Notification of Personnel Action" (Form SF50) if you were a federal employee.
8. Your most recent separation form (DD214) and any DD215 forms you have received from military service. You can request a DD 214 through the U.S. National Archives and Records Administration website at: <http://www.archives.gov/st-louis/military-personnel/standard-form-180.html>.
9. A check from your personal checking account so you can provide your bank's routing number and your checking account number if you choose Direct Deposit of your weekly benefits.

You can file a claim without all of these documents. However, missing information could delay your first payment.